

Transportation of Goods (Through Foreign Territory) Regulation, 1965

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Union of India - Act

Transportation of Goods (Through Foreign Territory) Regulation, 1965

UNION OF INDIA

India

Transportation of Goods (Through Foreign Territory) Regulation, 1965

RULE TRANSPORTATION-OF-GOODS-THROUGH-FOREIGN-TERRITORY-REGULATION-1965 of 1965

Published on 21 August 1965

Commenced on 21 August 1965

[This is the version of this document from 21 August 1965.]

[Note: The original publication document is not available and this content could not be verified.]

Transportation of Goods (Through Foreign Territory) Regulation, 1965

Published vide C.B.E. and C. Notification No. 112/65-Cus dated 21st August, 1965.

C.B.E. and C. Notification No. 112/65-Cus dated 21st August, 1965. - In exercise of the powers conferred by Section 157 read with Section 56 of the Customs Act, 1962 (52 of 1962), the Central Board of Excise and Customs hereby makes the following regulations, namely :

1.

Short title.

- These regulations may be called the Transportation of Goods (Trough Foreign Territory) Regulations, 1965.

2.

Application.

- These regulations shall apply to goods, whether imported or indigenous which are to be transported from one part of

India to another through a route which lies partly over the territory of a foreign country.

3.

Consignor to deliver a bill.

(a)

Whenever any goods to which these regulations apply are to be transported, the consignor of the goods shall make an entry to that effect by presenting to the proper officer a bill (in duplicate) in the form specified in Form I to these regulations.

(b)

Every such consignor shall, while presenting the bill, make and subscribe to a declaration at the foot thereof as to the truth of its contents.

4.

Permission to load goods, etc.

- No person-in-charge of vessel shall permit the loading of such goods on a conveyance unless, -

(a)

the bill relating to them after approval by, and

(b)

a written permission to load the goods from the proper officer are received by him.

5.

Execution of bond.

- Before any such goods are permitted to be loaded on the conveyance, the consignor or the person-in-charge of the vessel shall be required to execute a bond in such form and with such surety or sufficient security as the proper officer may demand, binding himself in an amount not exceeding the value of the goods.

6.

Duties of the person-in-charge of the conveyance.

(1)

On receipt of the documents referred to in Reg. 4, the person-in-charge of the conveyance shall prepare as many sets of manifest (in triplicate) in the form specified in Form II to these regulations in respect of such goods as there are customs stations to be passed through on the route.

He shall immediately on arrival at any customs station of delivery or re-entry, deliver a set of the manifest along with the bill or bills relating to the goods to the proper officer at the customs station.

(2)

The proper officer shall, after making the necessary check, make an endorsement on the manifest, retain one copy of the manifest and return the other two copies to the person-in-charge of the conveyance.

(3)

The person-in-charge of the conveyance shall retain one of the two copies for carriers record and present the other to the proper officer at the loading station.

(4)

The person-in-charge of the conveyance carrying such goods shall not leave the customs station until a written permission has been given by the proper officer after checking the manifest presented to him under these regulations.

7.

Delivery of bills at the destination station.

- The person-in-charge of the conveyance shall carry with him on the journey all the bills relating to the goods delivered to him and shall immediately on arrival at any customs station deliver to the proper officer such of the bills as relate to the goods unloaded at the station.

8.

Clearance of goods .

- Such goods, after being unloaded at any customs station, shall not be cleared unless the proper officer gives a written permission that all the goods so unloaded are entered in the bill or bills delivered to him under these regulations.

9.

Terms of the bond.

- The condition of the bond to be executed under Reg. 5 shall be that if the person-in-charge of the conveyance or the

consignor produces proof within a time stipulated in the bond or such extended time as the proper officer may permit that the goods have been produced before the proper officer at destination the bond shall be void; and if such proof be not furnished the executor of the instrument shall be liable to pay an amount equal to the export duty leviable on the goods and such penalty as may be adjudged or imposed by the proper officer under the Customs Act, 1962, the Imports and Exports (Control) Act, 1947 (18 of 1947), or the Foreign Exchange Regulation Act, 1947 [7 of 1947]

[See now the Foreign Exchange Regulation Act, 1973.]

and shall also be liable to forfeit the whole amount of the bond.

10.

Execution of general bond.

- Notwithstanding anything contained in these regulations, the proper officer may permit the person-in-charge of the conveyance or the consignor of goods to enter into a general bond in such form and with such surety or security as the proper officer may deem fit, in respect of transport of goods as above said to be effected from time to time.

Form I

(See para. 1 under Section 56)

Customs Declaration Form

I/We hereby declare that the description and the value of the goods mentioned in the Annexure hereto as well as the description in the forwarding note are true to the best of my/our knowledge and belief.

2. In case -

(a)

the packages in which they are contained or any of them differ from the description given in the said Annexure or in the forwarding note; or

(b)

the contents thereof have been wrongly described in the said Annexure or in the forwarding note as regards the denominations, characters or conditions according to which such goods are chargeable with duty, or are being imported or exported; or

(c)

the contents of such packages or any of them have been incorrectly mentioned in regard to sort equality, quantity or value; or

(d)

goods not mentioned in the said Annexure or in the forwarding note have been concealed in or mixed with the articles specified therein or have apparently been packed so as to deceive the officers of the customs, and such circumstances or any of them is not accounted for to the satisfaction of the [Commissioner of Customs]

[Substituted by the Finance Act 1995 (22 of 1995), Section 50, for the words 'Collector of Customs'.]

or in case the said goods or any part thereof, being subject to export duty or any restrictions under the Imports and Exports (Control) Act, 1947 (18 of 1947), or the Foreign Exchange Regulations Act, 1947 See now the Foreign Exchange Regulation Act, 1973. (7 of 1947), have been lost while in transit over any foreign territory.

I/We agree to pay on demand to the President of India the amount of duty, if any, and also such amount of penalty as may be adjudged or imposed by any competent officers of the Government of India on me/us under the Customs Act, 1962 and/or the Imports and Exports (Control) Act, 1947 or the [Foreign Exchange Regulations Act, 1947]

[See now the Foreign Exchange Regulation Act, 1973.]

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Annexure

1. Marks on and description of packages.....

2. Description of goods.....

3. Weight, quantity or number.....

4. Value of the goods.....

5. Customs station of entry.....

6. Customs station of re-entry.....

I/We hereby declare the above particulars to be true.

Signature of consignor or his authorized agent

.....

Occupation.....
Address.....
Date.....

Transport Permitted.

Officer of Customs

.....Name of Customs Station

Form II

(See para. 1 under Section 56)

Transit Manifest

Serial No.....

Date.....

Name of vessel.....

Rotation No.....

(for Calendar year)

Sl. No.

Bill No. and date.

Station from

Name and Address of consignor

Station to

Name and address of consignee

Description of goods

No. of pkgs

Quantity.

Value of goods.

Customs Sl. No. shown in the bill.

Remarks

1
2
3
4
5
6
7
8
9
10
11
12

Signature of the person-in-charge of the conveyance.

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